

wick v. Doleman to the case, where a *grandmother* [*391] having a power over the settled * estate, appointed

has been adopted have arisen on gifts by *parents* or persons in *loco parentis*. In general the estate passing to the eldest son has been in the power of the persons making the provision for the younger children, and the same instrument has comprised the estate and the provision. Has the rule ever been applied to portions given by a stranger, who merely contemplated the chance of property descending to the eldest son, as representative of the family ? ”

In *Lincoln v. Pelham*, 10 Ves. 166, (and see *Bowles v. Bowles*, 1b. 177) the circumstances were somewhat similar. Lady Pelham gave a residuary fund in trust for Frances Pelham for life, and after her death for the younger children of the testatrix's late daughter, Catherine, Duchess of Newcastle. At the date of the will there were three children living of Catherine, viz. Lord Lincoln, Thomas, and John. Lord Lincoln died in the testatrix's lifetime, and Thomas contended that as he was a younger child at the date of the will, though not at the death of the testatrix, he was entitled to a share. Lord Eldon disallowed the claim, and considered that the general description of younger children was not equivalent to naming the younger children living at the date of the will, but meant younger children for the time being, and added, that “whatever was the principle as to *parents* or persons in *loco parentis*, it had no application here, for though the grandmother was executing a purpose, which as to this kind of doctrine might be considered *parental*, (the purpose of providing for the younger branches, of other persons certainly, but in a sense her family,) yet she thought that her daughters were sufficiently provided for, so as to make it unnecessary to consider them objects of her care,” 10 Ves. 174. Here,

again, there was no dispute as to the effect of the shifting of any estate, but it was simply a question of construction, who were the persons meant by the description of younger children.

In *Scarbrick v. Lord Skelmersdale*, 4 Y. & C. 116, Justice Maule said, “It is to be observed that it is only in cases of provision made by parents or persons standing *loco parentis*, that courts of equity give this forced construction to the word ‘younger.’ In cases of gifts by strangers courts of equity, as well as courts of law, construe the word according to its literal import, as laid down by Lord Hardwicke in *Hall v. Hewer*. The distinction is founded on the consideration, that in the one case the party giving or settling is regarded as doing an act which he was under a moral, though not a legal obligation to perform, whereas in the case of a gift by a mere stranger, no such obligation exists,” &c.

In *Sandeman v. Mackenzie*, 1 J. & H. 613, Mrs. Chisholm, a widow with three children (Alexander, the eldest — who was in possession of the Chisholm estates, subject to his mother's jointure — Duncan, and Jemima), married Sir Thomas Ramsay, and by the settlement made on the marriage, Sir T. Ramsay settled 10,000*l.* upon himself and wife successively for life, with remainder to the then present children of Mrs. Chisholm (except Alexander) equally at twenty-one; and if none of such younger children of Mrs. Chisholm should attain twenty-one, then in trust for Alexander. Sir T. Ramsay died in 1830, and Lady Ramsay in 1859; Alexander died in his mother's lifetime in 1838, and therefore Duncan came into possession of the Chisholm estates. All the three children attained twenty-one. The question was whether Dun-